

Tamil Nadu Legislative Assembly (Medical Attendance and Treatment) Rules, 1964

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State of Tamilnadu- Act

Tamil Nadu Legislative Assembly (Medical Attendance and Treatment) Rules, 1964

TAMILNADU

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Tamil Nadu Legislative Assembly (Medical Attendance and Treatment) Rules, 1964

Rule TAMIL-NADU-LEGISLATIVE-ASSEMBLY-MEDICAL-ATTENDANCE-AND-TREATMENT-RULES-1964 of 1964

Published on 8 January 1964

Commenced on 8 January 1964

[This is the version of this document from 8 January 1964.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Legislative Assembly (Medical Attendance and Treatment) Rules, 1964

Published vide Notification No. G.O. Ms. No. 38, Education and Public Health (Health), Dated 8th January 1964

G.O. Ms. No. 38, Education and Public Health (Health), Dated 8th January 1964. - In exercise of the powers conferred by sub-section (1) of section 14 of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), read with section 10 and sub-section (4) of section 12 of the said Act and in supersession of all the rules on the subject, the Governor of Tamil Nadu hereby makes the following rules: -

1.

(i)

These rules may be called the Tamil Nadu [Legislative Assembly]

[Vide G.O. Ms. No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]
(Medical Attendance and Treatment) Rules, 1964.

(ii)

These rules shall be deemed to have come into force on the 6th of December 1962.

2.

[A Minister, the Speaker, the Deputy Speaker or the Parliamentary Secretary shall for, himself and the members of his family, be entitled, free of charge to accommodation in hospitals maintained by the State Government and also to medical treatment and attendance, on the same terms and conditions as are applicable to the highest category of servants employed under the Government of Tamil Nadu.]

[Vide G.O. Ms. No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

3.

They shall also be entitled to the supply of diet, free of charge.

4.

The members of the [Legislative Assembly]

[Vide G.O. Ms. No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

shall, for themselves and the members of their family for the entire period of their membership, be entitled to -

(i)

[accommodation in "A" Class wards or "B" Class wards whichever is available at the time of admission in the hospitals maintained by the State Government free of charge;

[Vide G.O. Ms. No. 1456, Public (Legislature Wing), dated the 1st September 1989.]

(ii)

free medical treatment;

(iii)

diet during their inpatient treatment free of charge; and

(iv)

concessions in regard to reimbursement of cost of drugs purchased in the open market as are admissible to Government servants of State Services:]

[Provided that orders issued in the Government Memorandum No. 33699/T1/77-14, Health and Family Welfare Department, dated the 29th May of 1978 will not apply to Members of the [Legislative Assembly]

[Vide G.O. Ms. No. 500, Public (Establishment-I), dated the 25th February 1980.]

.]

[Explanation 1. - For the purpose of this rule, the expression "family" means -

(a)

in the case of male Member of the Legislative Assembly - (i) parents;

(ii)

wife;

(iii)

legitimate children (including an adopted son and daughter); and

(iv)

step children residing with and wholly dependent on him. The word "wife" includes more than one wife; and

(b)

in the case of female Member of the Legislative Assembly -

(i)

parents;

(ii)

husband; and

(iii)

children (including an adopted son and daughter) residing with and wholly dependent on her.]

[Explanation 2. - For the purpose of this rule, the word "children" means children who have not completed twenty-five years, unmarried and not employed in Government, private or self-employment.]

[Vide G.O. Ms. No. 35, Public (Establishment-I and Legislature), dated the 8th January 2003.]

5.

(1)

For the purpose of availing the medical concession referred to in these rules, every Member of the [Legislative Assembly]

[Vide G.O. Ms. No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

shall be provided with an "Identity Card" in the Form [specified in Appendix-I to these rules.]

[Vide G.O. Ms. No. 191, Public (Establishment-I and Legislature), dated the 8th March 1994.]

(2)

[In the event of any Member of the Legislative Assembly ceases to be such member, the identity card shall be returned forthwith to the Legislative Assembly Secretariat.]

[Vide G.O. Ms. No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

5A.

Every Member of the Legislative Assembly, including any such member who holds any of the offices referred to in sections 3, 4, 6 and 6-A of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951) who undergoes any of the major surgeries specified in Appendix-II to these rules, in any hospital maintained by the Central Government, any State Government or any Union Territory Administration, or in any private hospital situated in the territory of India, shall be entitled to financial assistance, subject to the following conditions, namely: -

(i)

When a member requires that a major surgery need be performed in a private hospital in the normal course, he shall apply for prior permission of the Director of Medical Education /Director of Medical and Rural Health Services in the form specified in Appendix-III to these rules and the Director shall specifically certify that necessary facilities for the surgery to be performed in the particular case are not available in the Government Medical Institutions. In such a case the actual expenditure incurred for the surgery shall be reimbursed in full. The member shall claim such expenditure in the form specified in Appendix-IV to these rules.

(ii)

When a Member, in case of emergency, has undergone a major surgery in a private hospital, the claims for such treatment, after the treatment, shall be forwarded to the Government in the form specified in Appendix-IV to these rules through the Director of Medical Education, in case when the treatment was had in a private hospital in a city or town or through the Director of Medical and Rural Health Services, when the treatment was had in any other private hospital. In such a case, the expenditure shall be restricted to the amount that would have been incurred, had the member undergone the said surgery in a Government hospital, provided that the Director of Medical Education or Director of Medical and Rural Health Services, as the case may be, certifies that the member needed the emergent surgery.

(iii)

The diet charges incurred by the member during the period of admission in the hospital shall be met by the Government in full.

(iv)

Expenditure incurred towards preliminary medical investigation prior to operation shall be met by the Government in full.

(v)

No compensation amount shall be paid from the State funds for the donor in case of transplantation of kidney or any other vital parts of the body.

(vi)

The claims for treatment for major surgery shall be submitted within sixty days from the date of discharge from the private Hospital.

6.

[

[Vide G.O. Ms.No. 1287, Public (Establishment-I and Legislature), dated the 19th November 2001.]

The State Government may, by order, relax the provisions of these rules in any particular case to such extent or subject to such conditions or modifications, as may be specified in such order.]

[Vide G.O. Ms. No. 35, Public (Establishment-I and Legislature), dated the 8th January 2003.]

[Appendix-I]

[Vide G.O. Ms. No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

Identity Card For Availing Medical Concession Under The Tamil Nadu [Legislative Assembly]
[Vide G.O. Ms.No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]
(Medical Attendance and Treatment) Rules, 1964

(Valid from.....)

Proform A

(Page 1)

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Space for photo

| 1.

| Name of Member of the [Legislative Assembly]

[Vide G.O. Ms.No. 191, Public (Establishment-I and Legislature), dated the 8th March 1994.]

(Constituency and District to be specified):

| -

| 2.

| Mofussil Address:

| -

| 3.

| Address in Chennai City:

| -

| 4.

| Date on which the Member was declared
elected/nominated to the legislative Assembly:

| -

| 5.

| Married or single:

| -

| 6.

| Specimen signature

| -

|

| (1)

|

| -

|

| (2)

|

| -

|

| (3)

|

| }

(Page 2)

Particulars of family members:

Name

Age

Identification marks

1.

Wife/Husband:

2.

Dependent Sons:

(i)

(ii)

(iii)

(iv)

3.

Dependent Daughters:

(i)

(ii)

(iii)

(iv)

4.

Dependent Parents:

(i) Father

(ii) Mother

(Page 3)

Certificate

Certified that the particulars furnished in pages 1 and 2 are true and that my family consisting of.....members as per details given on page 2 are residing with and are wholly dependent on me.

Date:

Signature of the Member

Certified that Thiru/Thirumathi/Selvi a member of the Tamil Nadu Legislative Assembly representing.....Constituency (.....district) and the members of his/her family referred to above are entitled to accommodation in "A" Class wards or "B" Class wards whichever is available at the time of admissions in the hospitals maintained by the State Government free of charge, free medical treatment, diet during in-patient treatment free of charge and concession in regard to reimbursement of cost of drugs purchased in the open market as are admissible to Government Servants of State Services.

(Attested)

Date Stamp and Seal of the issuing authority.

Signature of the issuing authority Designation: Office:

Instructions:

1. For incorporation of any addition or modification in the particular whenever necessary, it may be got attested.
2. [The identity card shall be returned to the Legislative Assembly Secretariat from which it was issued immediately on ceasing to be a member.]

[Vide G. O. Ms.No. 482, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

[Appendex-II]

[Vide G.O. Ms.No. 191, Public (Establishment-I and Legislature), dated the 8th March 1994 (with effect from 1st May 1990) Vide G.O. Ms. No. 1187, Public (Establishment-I and Legislature), dated the 19th December 1995.]

(See rule 5-A)

List of Major Surgeries

Name of the Speciality/Department

Major Surgeries

(1)

(2)

1. Cardio Thoracic

Coronary Bypass Surgery, Open Heart Surgery for valve replacement. Closed heart surgery for correcting defects. Lungs surgeries for cancer, T.B. Cancer, etc.

2. Neuro Surgery

Brain Tumour Surgery, Spinal cord Tumour Surgery, Sterio Tactic Surgery, Surgery for Brain Haemorrhage (Emergency) Carnio plasty.

3. Orthopaedic

Hip replacement, knee surgery replacement A.O. Technique of fixing all bones, limb lengthening operation, Bone Tumour Operation, Tumour injury operation, Spinal cord deformity correction operation.

4. Genito Urinary

Kidney transplant, Tumours of Genito Urinary Surgery, Birth defects of Genito Urinary system, Injuries to Genito Urinary Organs, Bladder reconstruction, Kidney 5 Bladder stones Surgery (Phylolithotomy), Prostate Surgery.

5. E.N.T.

Surgery for Cancer of E.N.T. (Total Laryngectomy) Maxilac-tomy Stapedectomy Cancer Nasopharynx.

6. Plastic Surgery

Correction of birth defects of lip, nose, ear, eye and head 85 limbs. Micro surgery, Burns surgery. In accidents major injuries to face.

7. Vascular surgery

Aneurysm of large blood vessels of the body. Vascular graft for major blood vessels. Tumour of the blood vascular system.

8. Surgical Gastro

All major surgeries of Oesophagus, Enterology stomach, Enterology small intestine, large intestine, rectum and anus and for Cancers of the above organs. Major surgeries for liver, Spleen and Pancreas, gall bladder.

9. Endocrinology

Surgery of Pituitary para thyroid, Thyroid and adrenal gland for cancer and other problems.

10. General surgery

All major general surgeries in emergencies like.

1. gastro intestinal obstruction
2. Gastro intestinal perforation
3. Cancer Tumour in abdominal and Peritoneal cavity.
4. Tumour "Cancer" related pelvic cavity.

[Appendix-III]

[Vide G.O. Ms. No. 1287, Public (Establishment-I and Legislature) Department, dated the 19th November 2001.]

[See rule 5-A(i)]

Form For Getting Prior Permission For The Members of The Legislative Assembly

(1)

Name of the Member of the Legislative Assembly

:

(2)

Constituency

:

(3)

Nature of disease/surgery to be performed

:

(4)

Name of the private hospital where the treatment/ surgery proposed

:

(5)

(i) Whether any investigation have been done

:

(ii) If so, furnish details (copies of results of investigations to be enclosed)

:

(6)

Probable date of surgery

:

(7)

Approximate cost of the treatment/ surgery to be undergone

:

(8)

Whether treatment facilities are available in the Government Hospital

:

(9)

The reason for taking this treatment/surgery in private hospital instead of Government Hospital

:

I hereby declare that the above particulars furnished by me are true.

Place:

Date:

Signature of the Member of the Legislative Assembly.

[Appendix-IV]

[Vide G.O. Ms. No. 1287, Public (Establishment-I and Legislature) Department, dated the 19th November 2001.]

[See rule 5-A(i) and (ii)],

Form for Claiming Reimbursement of Expenses in Connection with Major Surgery to the Member of the Legislative Assembly

1.

Name and Constituency of the Member (in Block Letters)

:

2.

Address of the Member

:

3.

Nature of disease/surgery

:

4.

Place and name of the hospital at which the Member undergone surgery

:

5.

Date of surgery and period of treatment

:

6.

Details of amount claimed

: Rs.....

7.

List of enclosures surgery to be undergone

:

Declaration to be Signed by the Member of the Legislative Assembly

I hereby declare that the above particulars are true to the best of my knowledge.

Place:

Date and signature of the Member.

Related AI tags, queries and research notes

Translation